



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

MAY - 2 2002

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 13003

EXPIRATION DATE: May 31, 2002

1. GRANTEE: Airgas West, Inc.
Los Angeles, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-way transportation in commerce of anhydrous ammonia in a DOT Specification 3AA cylinder which developed a leak. The cylinder is equipped with a Chlorine Institute Emergency "A-Kit" to prevent leakage during transportation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.301(c) and 173.34(d) in that a safety relief device is not required.
5. BASIS: This emergency exemption is based on the application of Airgas West, Inc. dated May 2, 2002, submitted in accordance with 49 CFR 107.117 and the determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3AA-2015 cylinder which developed a leak. The cylinder is equipped with a Chlorine Institute emergency "A-Kit" to prevent leakage during transportation.

b. The cylinder must be braced and blocked to prevent movement during transportation.

8. SPECIAL PROVISIONS:

a. The cylinder will be transported from Fontana, CA to Los Angeles, CA by a motor vehicle owned and operated by Airgas, Inc.

b. The marking requirements of § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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Continuation of DOT-E 13003

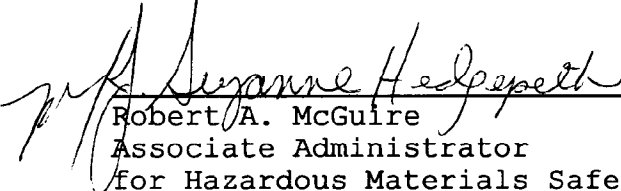
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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

MAY - 2 2002

(DATE)


Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RP